

25TRCV01944 25TRCV01944

County: los-angeles

Division: Civil Law and Motion

Department: M

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Case Number: 25TRCV01944 Hearing Date: September 21, 2026 Dept: M

LOS ANGELES SUPERIOR COURT – SOUTHWEST DISTRICT

Honorable Amy N. Carter

Department M

Monday – September 21, 2026

Calendar No.

PROCEEDINGS

Luisa

Vianey Gallardo v. SCJ Group, et al.

25TRCV01944

Luisa Vianey Gallardo's Motion for Relief from Dismissal

TENTATIVE RULING

Luisa Vianey Gallardo's Motion for
Relief From Dismissal is granted.

Background

Plaintiff filed the Complaint on June 13, 2025.

Plaintiff alleges that she was involved in a motor vehicle collision with

Defendants.

Motion to Set Aside Dismissal

CCP § 473(b) states, in relevant part: “The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken. . . . Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect. The court shall, whenever relief is granted based on an attorney's affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties. . . .”

Plaintiff moves for an order granting relief from the entry of dismissal. The motion is brought pursuant to CCP § 473 et seq. on the grounds that the dismissal was entered due to the mistake, inadvertence, surprise, and/or neglect of Plaintiff's counsel. Plaintiff has set forth facts to support a showing that the dismissal was entered due to the mistake, inadvertence, surprise, and/or neglect of Plaintiff's counsel. Plaintiff's counsel failed to appear at the July 14, 2026 status conference due to a calendaring mistake. (Decl. Jesus Becerra, ¶¶ 4-13). None of the arguments made by Defendant are persuasive. The Court is mandated to grant this motion upon an attorney declaration attesting to the fact that the dismissal was entered due to his mistake, inadvertence, surprise, or neglect. In fact, the neglect need not even be excusable neglect.

However, Defendant is correct on one point. Defendant may be entitled to reasonable attorneys' fees and costs.

Code Civ. Proc., § 473 (c)(1) states:

“Whenever the court grants relief from a default, default judgment, or dismissal based on any of the provisions of this section, the court may do any of the following:

(A) Impose a penalty of no greater than one thousand dollars (\$1,000) upon an offending attorney or party.

(B) Direct that an offending attorney pay an amount no greater than one thousand dollars (\$1,000) to the State Bar Client Security Fund.

(C) Grant other relief as is appropriate.

(2) However, where the court grants relief from a default or default judgment pursuant to this section based upon the affidavit of the defaulting party's attorney attesting to the attorney's mistake, inadvertence, surprise, or neglect, the relief shall not be made conditional upon the attorney's payment of compensatory legal fees or costs or monetary penalties imposed by the court or upon compliance with other sanctions ordered by the court.”

The Court notes, however, that Defendant simply made a vague request and provided no amount that is sought nor any declaration to support the amount sought.

The motion must be granted pursuant to the mandatory provision of CCP § 473(b). The dismissal is hereby set aside.

Plaintiff is ordered to give notice of this ruling.